



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

[HB 2811](#): obstructing governmental operations; lawful arrest

GILLETTE FLOOR AMENDMENT

1. Removes conflicting language that excludes interference with the making of an arrest from the definition of obstructing governmental operations.

GILLETTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2811
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-2402, Arizona Revised Statutes, is amended to
3 read:

4 13-2402. Obstructing governmental operations; classification

5 A. A person commits obstructing governmental operations if, by
6 using or threatening to use violence or physical force, ~~such~~ THE person
7 knowingly obstructs, impairs or hinders:

8 1. The performance of a governmental function by a public servant
9 acting under color of his official authority; or

10 2. The enforcement of the penal law or the preservation of the
11 peace by a peace officer acting under color of his official authority;

12 OR -

13 3. THE MAKING OF A LAWFUL ARREST.

14 ~~[B. This section does not apply to the obstruction, impairment or~~
15 ~~hinderance HINDRANCE of the making of an arrest.]~~

16 [C.] [B.] OBSTRUCTING GOVERNMENTAL OPERATIONS PURSUANT TO
17 SUBSECTION A, PARAGRAPH 3 [OF THIS SECTION] IS A CLASS 5
18 FELONY. Obstructing governmental operations PURSUANT TO SUBSECTION A,
19 PARAGRAPH 1 OR 2 [OF THIS SECTION] is a class 1 misdemeanor.

20 Enroll and engross to conform

21 Amend title to conform

JOHN GILLETTE